



Health Department

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MEMORANDUM OF UNDERSTANDING BETWEEN

NORTH BOULDER COUNTY ENVIRONMENTAL HEALTH COMMUNITY TASK FORCE
AND
CEMEX INC.

WHEREAS, this Agreement is made and entered into this 13th day of August 2001, by and between NORTH BOULDER COUNTY ENVIRONMENTAL HEALTH COMMUNITY TASK FORCE, herein referred to as the Task Force, and CEMEX, INC., formerly Southdown Inc.

WHEREAS, the Boulder County Board of Health supports this community-based, collaborative and non-regulatory approach to improving public health and the environment within this community.

WHEREAS, additional Partners may join at any time, and will be encouraged to do so in accordance with the mission, vision, and goals of the Task Force.

WHEREAS, this Memorandum of Understanding constitutes a non-binding Agreement among the signatory parties to pursue a collaborative working relationship to improve the health, environment, and quality of life of the St. Vrain Valley as described below. This Agreement indicates willingness to investigate and implement such an approach, and to participate in discussions with other parties concerning the possible benefits of a collaborative approach to improving public health and environment within Boulder County.

WHEREAS, this Memorandum of Understanding is not intended and shall not be construed to create the relationship of agent, servant, employee, partnership or joint venture, the relationship between the parties is strictly that of independent entities.

WHEREAS, the St. Vrain Valley is an expansive area in northern Boulder County, located to the east of the foothills and north of Boulder between Lyons and Longmont, which is facing emerging environmental health issues, and the land use in the area includes low-density residential housing, agricultural, and industrial and commercial development.

WHEREAS, there are several environmental health and quality-of-life issues related to CEMEX, INC. which are of concern to the residents of the St. Vrain Valley. The issues range from blowing fugitive dust, stack emissions, noise from industrial operations, diesel emissions from increased truck traffic, facility expansions, concerns with disposal of cement waste dust (CKD) in submerged pits, deposition of particulate pollution on plants of economic value, to the deprivation of enjoyment of private property.

WHEREAS, the Task Force was developed and sanctioned by the Boulder County Board of Health in April 1999 as an organized, select group of individuals which represents interests from the community (37%), special interest groups (27%), industry (27%), and government (9%).

WHEREAS, the Task Force has been funded by Boulder County Health Department and the Colorado Department of Public Health & Environment for fiscal years 1999, 2000, and a portion of 2001.

WHEREAS, the purpose of the Task Force is to convene a group of stakeholders who are able to work collaboratively toward a common goal of improving the health and environment of the St. Vrain Valley through non-regulatory, voluntary strategies that are within the established mission of the Boulder County Health Department Environmental Health Program.

WHEREAS, the Task Force is committed to a collaborative working relationship with CEMEX INC. which has directly improved the quality of life for many residents in the St. Vrain Valley, the purpose of this MOU is to document agreed upon actions (see Appendix A) and to ensure that an agreement remains in place that outlines how the Task Force and CEMEX, INC. will continue to work collaboratively together.

WHEREAS, the Task Force mutually desires that the mission, vision, and goals implemented will represent the shared goals of the Task Force stakeholders and are developed for the benefit of the general public.

WHEREAS, accordingly, the signatories of this MOU agree to support the working agreement between CEMEX, INC. and the Task Force, the workplan of the Task Force, and the common goals and objectives of the Task Force.

WHEREAS, participation in this MOU indicates a willingness to continue to implement a collaborative working relationship among the signatories, and to follow the voluntary actions and guidelines attached as Appendix A until such time as the agreed process is deemed inappropriate, as per this MOU. At such time, the signatory must notify all parties in writing as to the reasons for termination of their participation in the MOU.

WHEREAS, the following list of signatures identifies current TASK FORCE and CEMEX, INC. stakeholders. IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.

ATTEST:

BOULDER COUNTY BOARD OF HEALTH

William Marine, MD

Appendix A

Activities implemented and agreed upon by CEMEX, INC. and the North Boulder County Environmental Health Community Task Force

1. Installation and maintenance of the CKD Pit sprinkler system.
2. Installation and maintenance of the Dowe Flats sprinkler and watering system.
3. Addition and continued use of a second water truck.
4. Modifications to the current truck wash, including re-routing so every truck must drive through it and installation of a sign which says "air pollution stops here."
5. Distribution of a community newsletter about facility improvements/updates and how to file complaints.
6. Addition of one employee to the payroll for augmenting more frequent plant cleanup/housekeeping efforts.
7. Major re-prioritization of plant expectations, including a formalized plant sweeping schedule, environmental job descriptions for management and employees (Appendix B), and establishment of a complaint procedure to handle community issues (Appendix C).
8. Installation of a closed circuit television monitoring system which allows plant operators 24 hour, real-time monitoring of plant conditions, making it easier to troubleshoot complaints.
9. Installation and maintenance of a PM₁₀ monitor on the east property line boundary.*
9. Provide task force and community members with results of the PM₁₀ sampler when requested or as deemed appropriate.*
10. Rail car shaker will only operate after 6:00 a.m. and no later than 9:00 p.m.
11. Activities causing fugitive-dust emission shall be suspended when winds reach 30 mph for a 15-minute period. This is a faster shutdown time then required by regulation.
12. BCHD to copy task force members on Southdown inspection reports.
13. Investigation of polymer coating enclosures for piles if future circumstances change.**
14. Respond to all complaints with follow-up and immediate action.

* Equipment has been removed. Equipment was installed to run November 1999 through October 2000 in order to document real conditions versus modeled conditions. Results are available and will be provided upon request.

** Polymer coating enclosures are not feasible or cost-effective with current stockpiles.